

VCL329829 Capital One, N.A., successor by merger to Discover Bank vs. Abdullah, Riyadh A

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-08-13

Motion: Plaintiff's Motion to Set Aside Judgment

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Re: Capital One, N.A., successor by merger to Discover Bank vs. Abdullah, Riyadh A

Case No.: VCL329829

Date: August 13, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiff's Motion to Set Aside Judgment

Tentative Ruling: To grant the motion and set aside the default; Defendant shall file an answer no later than thirty (30) days from the date of this hearing.

Facts and Analysis

In this matter, default judgment was entered against Defendant on March 27, 2026. However, Plaintiff indicates that, prior to entry of judgment, it agreed to an extension for Defendant to file an answer and that the request for entry of default judgment was inadvertent. The Court, therefore, grants the motion and orders Defendant to file an answer no later than thirty (30) days from the date of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.